

REFRIGERATION SERVICE AGREEMENT

Agreement	SA-2019-4412
Between	Ledgerwood Refrigeration Services, Inc. ("Contractor")
And	Brightleaf Markets, Inc. ("Customer")
Executed	January 14, 2019
Initial term	3 years, automatically renewing annually
Sites	38 Brightleaf locations per Schedule A

§4 —Preventive maintenance

4.1 Contractor shall perform preventive maintenance at the frequency stated in Schedule A for each site. Millbrook (Store 14): **quarterly**, in January, April, July and October.

4.2 Preventive maintenance comprises condenser cleaning, filter replacement, leak inspection, control verification and recording of operating parameters at each rack. **Discharge-side gauging is not within the scope of a preventive maintenance visit** and is performed only on a service order.

§5 —Demand service

5.1 Contractor shall attend on demand service requests within the response times stated in Schedule B.

5.2 A demand service request is opened by Customer through the customer portal or by written request to Contractor's dispatch function. Contractor shall not be obliged to attend, and shall not bill against this Agreement, absent an open service order.

5.3 Contractor may open a service order on its own initiative where it observes a condition requiring attention, in which case Customer shall be notified before work is performed and may decline, in which event Customer bears the cost of attendance.

§6 —Monitoring and reporting

6.1 Contractor shall maintain remote product-temperature monitoring at each site equipped for it.

6.2 Contractor shall transmit a monthly product temperature log to Customer's nominated facilities contact on the 14th day of each month. **Transmission of a log is a reporting obligation only. It does not constitute notice to Contractor of a condition, does not create a service order, and does not oblige Contractor to review the log's contents.**

§9 —Limitation

9.1 Neither party's liability for product loss shall be limited by this Agreement, the parties having priced the Agreement on that basis.

9.2 Nothing in this Agreement relieves Customer of its obligation to mitigate.